



POLICE DEPARTMENT

April 28, 2022

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202101848 regarding Detective Robert Klein, Tax No. 936874

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges/Specifications in connection with CCRB Case No. 202101848, pertaining to Detective Klein. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges/Specifications against Detective Klein would be detrimental to the Police Department's disciplinary process.

The Police Commissioner noted that, in this matter, the available video evidence clearly shows that Detective Klein was escorting an unruly arrestee, who had already demonstrated a propensity for violence and was making efforts to escape from his control, to a nearby prisoner transport vehicle. The allegation of discourtesy against Detective Klein was based on his order to the arrestee to "[expletive] relax" as the arrestee exhibited a continued effort to pull away from him. This single statement was made for emphasis in order to gain compliance from the arrestee, and, given the totality of the circumstances, did not constitute misconduct.

Then, upon arrival at the transport vehicle, a line of arresting officers and their arrestees had formed, and Detective Klein joined that line. It was clear in the video evidence that each arrestee was, appropriately, being searched prior to being placed into the vehicle. When they reached the front of the line, the officer assigned to the transport vehicle tried to ascertain whether the arrestee should be searched by a male or female officer, and the arrestee loudly complained about the question. After being passed over in favor of others waiting on the line, Detective Klein moved back into position with the arrestee for another opportunity to have the arrestee placed into the transport vehicle. This time, when asked again whether the arrestee wished to be searched by a "male or female," Detective Klein answered "go with female." This statement successfully led to a female officer searching the arrestee and the arrestee's placement into the transport vehicle. There was no offensive behavior exhibited by the Detective or any officers at the scene, rather there was merely an effort to comply with required safety protocols during an unusual large-scale arrest incident.

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The Police Commissioner further noted that Detective Klein has no other substantiated CCRB allegations in his career, and has not received any formal discipline from the Department prior to this incident.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and based on the interests of justice, the Police Commissioner intends to retain jurisdiction over this matter and take no disciplinary action against Detective Klein.

If you have any questions, please feel free to contact me at 646-610-5577.

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish at the end.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office